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CASE #	CASE NAME	HEARING NAME
CVPS2506225	BOCK VS PALM SPRINGS UNIFIED SCHOOL DISTRICT	MOTION TO SET ASIDE DEFAULT OF CROSS-DEFENDANT/ AND/OR RECONSIDER ENTRY OF DEFAULT

Tentative Ruling: PROOF OF SERVICE: Proper

GRANTED via NON-OPPOSITION

2.

CASE #	CASE NAME	HEARING NAME
CVRI2305855	HEWITT VS KLEIN	MOTION TO APPOINT RECEIVER ON 2ND AMENDED COMPLAINT

Tentative Ruling: PROOF OF SERVICE: Proper

DENY

SUSTAIN: Plaintiff's objections to ¶¶ 5, 9, 14, 15, 17, 19, 20, 25, and Ex. J to the Klein Decl., and to ¶¶ 5, 45, 94, and 95 of the Altstadt Decl.;

OVERRULE Plaintiff's objections to ¶¶ 3, 4, 7, 18, and Ex. K to the Klein Decl., and to ¶¶ 26, 31, 41-44, 49, 50, 59, 98-102, and Schedules 1-5 of the Altstadt Decl.;

and **SUSTAIN** in part and overrule in part Plaintiff's objections to ¶¶ 13.i.-13.xxxii. of the Klein Decl.,

SUSTAIN Defendants' objections to ¶¶ 22-26 of the Hewitt Decl., and **OVERRULE** their objection to ¶ 21 of the Hewitt Decl.

This is a dispute between co-owners of a marijuana dispensary in Jurupa Valley. On November 1, 2023, Plaintiff Scotty Hewitt ("Plaintiff" or "Hewitt") filed a Complaint against Defendants Boutique Cultivators dba Remedy Room ("Remedy Room"), Wesley Klein ("Wesley"), and Claudia Klein ("Claudia") for: (1) corporate dissolution; (2) declaratory relief; and (3) civil extortion. On December 13, 2023, Plaintiff filed a First Amended Complaint. On June 4, 2024, following a stipulation and order allowing Plaintiff to file a Second Amended Complaint ("SAC"), Plaintiff filed the operative SAC asserting 17 causes of action for: (1) breach of fiduciary duty - duty of care, (2) breach of fiduciary duty - duty of loyalty, (3) breach of contract, (4) breach of the implied covenant of good faith and fair dealing, (5) promissory estoppel, (6) fraud; (7) assault, (8) intentional infliction of emotional distress, (9) conversion, (10) intentional interference with contractual relations, (11) intentional interference with prospective economic relations, (12) removal of director (Corp. C. §304), (13) violation of Corporations Code §25401, (14) violation of Penal Code §496, (15) UCL, (16) declaratory relief, and (17) corporate dissolution.